

PROPOSED FINDINGS OF FACT

Worldwide Nexus Logistics, LLC v. Wallenius Wilhelmsen Ocean AS

Federal Maritime Commission – Docket No. 25-15

Pursuant to the procedural schedule established in this proceeding, Complainant Worldwide Nexus Logistics, LLC (“WNL”) respectfully submits the following Proposed Findings of Fact based on the evidence introduced in the record, including deposition testimony, documentary exhibits, and the parties’ discovery productions.

I. THE PARTIES

1. At all relevant times, Complainant Worldwide Nexus Logistics, LLC (“WNL”) was a licensed non-vessel operating common carrier (“NVOCC”) engaged in arranging ocean transportation in the foreign commerce of the United States.
2. At all relevant times, Respondent Wallenius Wilhelmsen Ocean AS (“WWO”) was an ocean common carrier engaged in the transportation of cargo by vessel in the foreign commerce of the United States.
3. WNL arranged ocean transportation services through WWO pursuant to Service Contract NASA23-003. (CX-0126–CX-0148)

II. THE SHIPMENTS

4. In late 2023, WNL arranged ocean transportation services for three boats through WWO for delivery to San Antonio, Chile.
5. The shipments were booked with WWO under booking numbers USSAV2348017, USSAV2348173, and USSAV2351444. (CX-0001–CX-0125)

6. WWO issued Sea Waybills US2387246, US2387773, and US2387995 covering the shipments.
(CX-0519–CX-0524)

7. The shipments were loaded aboard the vessel MORNING LADY voyage EC311. (CX-0519–CX-0524)

III. CARRIER RESPONSIBILITY FOR CARGO MANIFEST TRANSMISSION

8. Ocean carriers are responsible for preparing and transmitting vessel cargo manifests to customs authorities at ports of call.

9. The cargo manifest identifies cargo carried aboard the vessel and is relied upon by customs authorities to verify cargo entering or transiting through their jurisdiction.

10. The preparation and electronic transmission of cargo manifests are performed by the ocean carrier and its operational personnel and agents.

11. Shippers and NVOCCs such as WNL do not control the carrier's electronic cargo manifest transmission process.

IV. AGENCY RELATIONSHIP WITH IAN TAYLOR

12. WWO utilized Ian Taylor agencies, including Empresas Taylor Peru, as its port agent in connection with the voyage of MORNING LADY EC311.

13. Ian Taylor personnel communicated with WWO regarding operational and customs matters relating to cargo discharged in Pisco, Peru.

14. Those communications occurred within the scope of Ian Taylor's role as WWO's appointed port agent. (CX-0506–CX-0518 (WWO-0134–0146))

V. TRANSMISSION OF THE VESSEL MANIFEST

15. Prior to the vessel's arrival in Pisco, Peru, the cargo manifest for MORNING LADY EC311 was electronically transmitted to Peruvian customs authorities.

16. The transmitted manifest did not include the shipments documented under Sea Waybills US2387246, US2387773, and US2387995. (CX-0525–CX-0553)

VI. CARRIER DOCUMENTATION ERROR

17. Internal communications between WWO personnel and its port agent confirm that the omission occurred during the electronic transmission of the vessel manifest.

18. Those communications state that the omission occurred due to an “involuntary mistake.” (CX-0509–CX-0510 (WWO-0137–0138))

19. The communications further confirm that the electronic transmission did not include the information for Sea Waybills US2387246, US2387773, and US2387995. (CX-0509–CX-0510 (WWO-0137–0138))

VII. DISCOVERY OF THE MANIFEST OMISSION

20. On January 5, 2024, Respondent's documentation department transmitted the electronic cargo manifest for the vessel MORNING LADY scheduled to arrive in Pisco, Peru on January 6, 2024, but the information for Sea Waybills US2387246, US2387773, and US2387995 was not included due to an “involuntary mistake.” (CX-0509–CX-0510 (WWO-0137–0138))

21. On January 7, 2024, during vessel operations in Pisco, Peru, Customs Authorities conducted an inspection of the vessel MORNING LADY and determined that three cargo units aboard the vessel were not included in Cargo Manifest No. 127-2023-488 corresponding to the MORNING LADY vessel. (CX-0509–CX-0510 (WWO-0137–0138))

22. Respondent's internal communication reports that during the customs inspection authorities determined that the three units were not included in the vessel's cargo manifest and that “as a

consequence of this, the Customs Authorities decided to seize the 03 mentioned units.” (CX-0509–CX-0510 (WWO-0137–0138))

VIII. SEIZURE OF THE CARGO

23. Following the seizure, the cargo was discharged from the vessel and stored at the Port of Pisco, Peru. (CX-0509–CX-0510 (WWO-0137–0138))

IX. CARRIER COMMUNICATIONS FOLLOWING THE SEIZURE

24. Following the seizure, WWO personnel and agents exchanged internal communications regarding the manifest omission and the customs action. (CX-0509–CX-0510)

25. In those communications, WWO’s port agent stated: “We sincerely apologize for all inconveniences caused and please be sure that we bear all expenses involved and we are working and taking control so that it will not happen again.” (CX-0509–CX-0510 (WWO-0137–0138))

X. CORRECTED MANIFEST

26. Following discovery of the omission, a corrected vessel manifest was generated reflecting the previously omitted Sea Waybills. (CX-0554–CX-0585)

27. The corrected manifest demonstrates that the shipments should have appeared in the original manifest transmitted to customs authorities.

XI. FINANCIAL IMPACT

28. The seized cargo consisted of boats belonging to customers of WNL.

29. WNL issued invoices and received payments for the transportation services it arranged in connection with the shipments. (CX-0323–CX-0345)

30. The seizure of the cargo caused financial losses to WNL arising from the disruption of transportation services it arranged in connection with the shipments, including loss of

commercial opportunities, customer-related impacts, and resulting business damages associated with the affected shipments.

XII. KEY LIABILITY FINDINGS

31. The cargo manifest transmitted for the vessel MORNING LADY did not include the shipments documented under Sea Waybills US2387246, US2387773, and US2387995. (CX-0525–CX-0553; CX-0509–CX-0510 (WWO-0137–0138))

32. Internal communications confirm that the omission occurred during the electronic transmission of the manifest and resulted from an “involuntary mistake.” (CX-0509–CX-0510 (WWO-0137–0138))

33. During inspection of the vessel in Pisco, Peru, customs authorities determined that three cargo units aboard the vessel were not reflected in the transmitted cargo manifest. (CX-0509–CX-0510 (WWO-0137–0138))

34. Because those shipments were not reflected in the transmitted manifest, Peruvian Customs authorities seized the three cargo units following the inspection. (CX-0509–CX-0510 (WWO-0137–0138))

35. The omission occurred while the shipments were in the custody and operational control of Respondent and its agents responsible for manifest preparation and transmission. (CX-0509–CX-0510 (WWO-0137–0138))

Respectfully submitted,

/s/ Jean Lopez

Jean Lopez

President

Worldwide Nexus Logistics, LLC